

CONTRACT NO. _____

THIS AGREEMENT is made by and between the THE BOARD OF PUBLIC UTILITIES OF THE CITY OF CHEYENNE, hereinafter referred to as “BOPU,” and POLO RANCH COMPANY, hereinafter referred to as “Polo Ranch.”

RECITALS

WHEREAS, Polo Ranch and the City of Cheyenne are parties to a Drilling and Water Use Agreement entered into in 1955; and

WHEREAS, over the past several years there have been numerous disputes between the parties which have led to litigation and multiple court cases; and

WHEREAS, the Wyoming courts have upheld the validity of the 1955 agreement and the City’s interpretation of its meaning; and

WHEREAS, the Polo Ranch now seeks to develop twelve (12) lots, for a total of not more than twelve (12) wells, in the Quarter Circle Five subdivision; and

WHEREAS, the City of Cheyenne has an interest in additional development for the City and its residents; and

WHEREAS, the parties wish to enter into this Agreement;

NOW, THEREFORE, for good and valuable consideration, the receipt of which is hereby acknowledged by each party, the parties agree as follows:

1. BOPU/City agrees to allow Polo Ranch to develop the twelve (12) lots with (12) twelve corresponding wells in the Quarter Circle Five subdivision. See attached Exhibit.
2. This change in use does not affect the validity or enforceability of the City’s water rights under the 1955 Agreement and does not increase the City’s obligations under the 1955 Agreement.
3. This change in use applies to Polo Ranch’s entire allocation of water per the formula under the 1955 Agreement.
4. BOPU/City shall have no obligation to provide water to or for the Polo Ranch, for any use, including water for the lots in Quarter Circle Five, in excess of that determined by the formula in the 1955 Agreement.
5. The deduction from the Polo Ranch’s annual water entitlement for the Quarter Circle Five subdivision lots shall remain .7 acre feet per lot.
6. The Polo Ranch agrees to add deed restrictions to each lot sold to prevent further splitting of the twelve (12) lots.
7. The Polo Ranch agrees to restrict the size of the lawns of the twelve (12) lots within Quarter Circle Five subdivision to a maximum of 6,500 square feet.

8. Except for the consent of the City as set forth in paragraph 1 above, this Agreement shall not affect the rights and duties of the parties under the 1955 Agreement. This Agreement shall not be deemed to constitute an amendment of the 1955 Agreement.
9. In the event any additional documents are necessary to carry out the intent of this Agreement, the parties hereto agree to execute and/or obtain such documents promptly upon the request of the other party.

DATED this ____ day of _____, 2022.

BOARD OF PUBLIC UTILITIES OF
THE CITY OF CHEYENNE,

POLO RANCH COMPANY

By: _____
Mary Guthrie, President

By: _____
President

Attest: _____
Secretary

Attest: _____
Secretary

Attorney for BOPU

Attorney for Polo Ranch Company

CITY OF CHEYENNE

By: _____
Patrick Collins, Mayor

(SEAL)

Attest: _____
Kristina Jones, City Clerk

Stefanie Boster, City Attorney

